

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

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FRANCISCO MATOS,

Plaintiff,

SUMMONS

-against-

Plaintiff designates New York
County as the place of trial.

THE CITY OF NEW YORK,

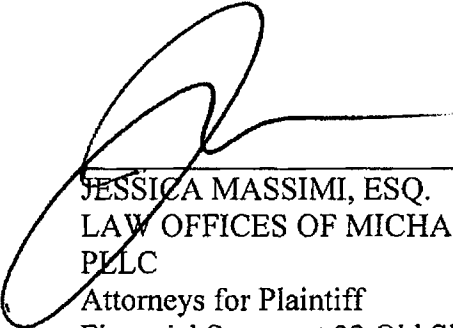
AND POLICE OFFICER KEVIN FALCONER,

Defendants.
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To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 19, 2018



JESSICA MASSIMI, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
Financial Square at 32 Old Slip - 8th FL
New York, New York 10005
(212) 962-1020

TO: THE CITY OF NEW YORK
C/O THE NEW YORK CITY LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NY 10005

POLICE OFFICER KEVIN FALCONER
34th Precinct
4295 Broadway
New York, NY 10033

SUPREME COURT STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
FRANCISCO MATOS,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

JURY TRIAL
DEMANDED

THE CITY OF NEW YORK,
AND POLICE OFFICER KEVIN FALCONER,

Defendants.

-----X
Plaintiff, FRANCISCO MATOS, by and through his attorneys, **THE LAW OFFICES
OF MICHAEL S. LAMONSOFF, PLLC**, as and for his Verified Complaint, respectfully
alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.
3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343, and 1367.
4. This court has jurisdiction over Plaintiff's federal claims pursuant to concurrent jurisdiction.

VENUE

5. Venue is properly laid in the Supreme Court of the State of New York, in that the events giving rise to this claim occurred in New York County in the State of New York.

JURY DEMAND

6. Plaintiff respectfully demands a trial by jury of all issues.

PARTIES

7. Plaintiff, FRANCISCO MATOS, is, and has been, at all relevant times, a resident of Bronx County, City and State of New York.
8. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
9. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
10. At all times hereinafter mentioned, the individually named defendant, POLICE OFFICER KEVIN FALCONER, was a duly sworn member of said department and was acting under the supervision of said department and according to her official duties. Defendant Falconer is sued herein in his official and individual capacities. At all times hereinafter mentioned, Defendant Falconer was assigned to the 34th Precinct of the NYPD.
11. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official

rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

FACTS

14. On November 17, 2016, at approximately 3:00 a.m., Plaintiff FRANCISCO MATOS was lawfully operating his vehicle at or near the intersection of Academy Street and Nagle Avenue, in the County of New York, City and State of New York.

15. At this time, Defendant Falconer and several other members of the New York City Police Department were present at the location on duty and in uniform.

16. Without any legal justification or excuse, Defendant Falconer directed Plaintiff to pull his vehicle over, to which Plaintiff complied.

17. Defendant Falconer instructed Plaintiff to hand over his license and registration, and to exit his vehicle.

18. Plaintiff complied with all of Defendant Falconer's directives.

19. Without any legal justification or excuse, Defendant Falconer searched Plaintiff.

20. The search revealed no evidence of any guns, drugs, or contraband.

21. Plaintiff was not engaged in any unlawful or suspicious activity.

22. Nonetheless, the Plaintiff was formally arrested, was placed in handcuffs, and was transported to the station house of a local area precinct believed to be the 28th Precinct where he was searched and detained for several hours.
23. The search yielded no evidence of any guns, drugs, or contraband
24. At no time on November 17, 2016, did Plaintiff commit any crime or violation of law.
25. At no time on November 17, 2016, did Defendant Falconer possess probable cause to arrest Plaintiff or to order Plaintiff's arrest.
26. At no time on November 17, 2016, did Defendant Falconer possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.
27. Plaintiff was held for several hours at the stationhouse before he was transported to Bronx County Central Booking where he was held for several additional hours before he was summarily released without explanation and without being charged when the New York County District Attorney declined to prosecute him.
28. As a result of the foregoing, Plaintiff FRANCISCO MATOS sustained, *inter alia*, embarrassment, humiliation, physical injuries, and deprivation of his constitutional rights.
29. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.
30. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.
31. The acts complained of were carried out by the aforementioned individual Defendants in

their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

32. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
33. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

FIRST CLAIM FOR RELIEF FOR
FALSE ARREST
UNDER 42 U.S.C. § 1983

34. Plaintiff FRANCISCO MATOS repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
35. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.
36. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for his safety, and he was falsely arrested without probable cause

SECOND CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

37. Plaintiff, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
38. Defendants arrested, searched, and incarcerated plaintiff FRANCISCO MATOS, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety, and violate his constitutional rights.
39. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
40. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
41. Those customs, policies, patterns, and practices include, but are not limited to:
- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
 - iv. failing to properly train police officers in the requirements of the United States Constitution.

42. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:
- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
 - ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
 - iii. falsifying evidence and testimony to support those arrests;
 - iv. falsifying evidence and testimony to cover up police misconduct.
43. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, FRANCISCO MATOS.
44. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.
45. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.
46. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiff was placed under arrest unlawfully.
47. Defendants, collectively and individually, while acting under color of state law, were

directly and actively involved in violating the constitutional rights of Plaintiff.

48. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.
49. All of the foregoing acts by defendants deprived Plaintiff of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

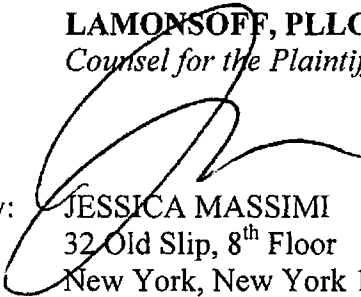
WHEREFORE, the Plaintiff respectfully requests judgment against each Defendant on each of the foregoing causes of action as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
April 19, 2018

Respectfully submitted,

**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff

By: 
JESSICA MASSIMI
32 Old Slip, 8th Floor
New York, New York 10005
(212) 962-1020

VERIFICATION

JESSICA MASSIMI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiff, FRANCISCO MATOS, in the action within. I have read the annexed

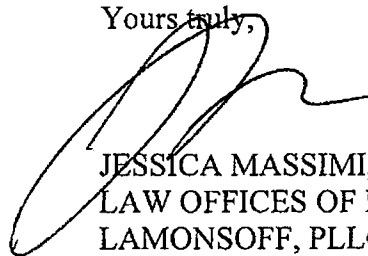
SUMMONS AND VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

Dated: New York, New York
April 19, 2018

Yours truly,



JESSICA MASSIMI, ESQ.
LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC
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